

25NNCV07268 25NNCV07268

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-09-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CT%2C09%2F10%2F2026

Source SHA-256: 25c1106838190663c5dc1a98e16f5372b67d0bcf29a5aa54d13e9a7df3a6ff63

Case Number: 25NNCV07268 Hearing Date: September 10, 2026 Dept: T

Lidia

Virrueta vs. Pavewest LLC, et al.

Motion

for Leave to File a Cross-Complaint

Moving Party: Defendant

Home Depot U.S.A., Inc.

Responding Party: None

Tentative Ruling: Grant

BACKGROUND

This is a negligence and premises liability action.

On July 31, 2026, Defendant Home Depot U.S.A., Inc. ("Home Depot") filed a motion for leave to file a cross-complaint for equitable and implied indemnity, contribution and apportionment, declaratory relief, breach of written contract, and express indemnity against Defendant Ben's Asphalt & Maintenance Company, Inc. ("Ben's Asphalt") and Roe defendants.

On August 10, 2026, Home Depot filed an amended motion.

No opposition was filed.

MOVING

PARTY POSITION

Home Depot seeks

leave to file a cross-complaint to allege cause of actions for equitable and implied indemnity, contribution and apportionment, declaratory relief, breach of written contract, and express indemnity against Ben's Asphalt based on Ben's Asphalt's failure to accept Home Depot's contractual tender of its defense and indemnity for Plaintiff Lidia Virrueta's

("Plaintiff")

claims against it in the underlying complaint.

OPPOSITION

No

opposition was filed.

REPLY

No

reply was filed.

ANALYSIS

I.

Legal

Standard

"A

party shall file a cross-complaint against any of the parties who filed the

complaint or cross-complaint against him or her before or at the same time as

the answer to the complaint or cross-complaint." (Code Civ. Proc. § 428.50, subd. (a).) "Any other cross-complaint may be filed at

any time before the court has set a date for trial." (Code Civ. Proc. § 428.50, subd. (b).) "A party shall obtain leave of court to file

any cross-complaint except one filed within the time specified in subdivision

(a) or (b)." (Code Civ. Proc. § 428.50,

subd. (c).) "Leave may be granted in the

interest of justice at any time during the course of the action.” (Ibid.)

A

party against whom a cause of action has been asserted in a complaint may file a cross complaint setting forth “[a]ny cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc. § 428.10, subd. (b).) “Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” (Crocker National Bank v. Emerald (1990) 221 Cal.App.3d 852, 864.)

II.

Discussion

As an initial matter, the Court notes that the proposed cross-complaint is asserted against parties other than Plaintiff and is thereby a permissive and not compulsory. (See, e.g., Insurance Co. of North America v. Liberty Mutual Ins. Co. (1982) 128 Cal.App.3d 297, 303.) Accordingly, as the proposed cross-complaint is permissive, the Court exercises its discretion in determining whether it is in the interest of justice to grant Defendants leave to file this cross-complaint. (See Crocker, *supra*, 221 Cal.App.3d at p. 864.)

Here,

Home Depot’s proposed cross-complaint asserts allege cause of actions for equitable and implied indemnity, contribution and apportionment, declaratory relief, breach of written contract, and express indemnity against Ben’s Asphalt and Roes 1 through 25. (Hansen Decl. ¶ 10, Exh. C (“Proposed Cross-Compl.”).) Home Depot alleges that Plaintiff’s claimed injuries in her complaint were directly and proximately caused by Ben’s Asphalt. (Proposed Cross-Compl. ¶¶ 6–8.) Home Depot further alleges that Ben’s Asphalt agreed to assume liability for any injuries arising out of its negligent conduct, to obtain general liability insurance for their

respective contracts with Home Depot, to name Home Depot as an additional insured on the obtained insurance policies, and to defend and indemnify Home Depot against claims arising out of these contracts, including Plaintiff's claims in the underlying complaint. (Id.

¶ 17.)

In support of the instant motion, defense counsel Linsey M. Hansen declares that Ben's Asphalt was "the paving contractor that performed the December 2022 to February 2023 capital repaving project at store No. 6610" where Plaintiff was allegedly injured on October 31, 2023. (Hansen Decl. ¶¶ 2–3.) Hansen also declares that, "[p]ursuant to the contract for Ben's Asphalt's work, it is obligated to defend and indemnify [Home Depot] from and against Plaintiff's claims." (Id. ¶ 4.)

As the proposed cross-complaint arises out of the same trip-and-fall incident alleged in Plaintiff's complaint, and as Home Depot alleges that any alleged harm to Plaintiff is attributable to Ben's Asphalt, the Court finds that granting Home Depot leave to file the cross-complaint would be in the interest of justice. (Paragon Real Estate Group of San Francisco, Inc. v. Hansen (2009) 178 Cal.App.4th 177, 183, italics in original ["Although the trial court retains the authority to postpone the trial of the indemnity question if it believes such action is appropriate to avoid unduly complicating the plaintiff's suit, the court may not preclude the filing of such a cross-complaint altogether."]; Time for Living, Inc. v. Guy Hatfield Homes/All American Development Co. (1991) 230 Cal.App.3d 30, 38 ["Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action."].) Nor does it appear that the parties will be unduly prejudiced by granting Home Depot leave to file a cross-complaint against Ben's Asphalt; nor does the record show that Home Depot unreasonably delayed in seeking leave.

Thus, the motion for leave to file a cross-complaint is granted.

RULING

Defendant Home Depot U.S.A., Inc.'s Motion for Leave to File a Cross-Complaint is GRANTED. Defendant shall file and serve the cross-complaint within ten days of this order.